

Surendra Kumar Khanna v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 25 January 2023 · Writ - C No. 1201 of 2023 · **Writ disposed; theft objections to be decided before recovery.**

HEADNOTE

The Allahabad High Court disposed of a writ against a Rs. 1,48,088 electricity-theft demand on the licensee's statement that the consumer's objection of 10 August 2022 would be decided under the Electricity Supply Code, 2005 before recovery. Respondent No. 2 was directed to decide the objection in accordance with law. The demand was not examined on merits.

FACTUAL SUMMARY

Surendra Kumar Khanna petitioned the Allahabad High Court against the State of U.P. and the distribution licensee over a demand notice dated 26 July 2022 of the Executive Engineer, Vidyut Vitaran Khand First (Paschimanchal Vidyut Vitran Nigam), Rampur, seeking Rs. 1,48,088 for alleged theft of electricity. He had objected on 10 August 2022 and asked that the objection be decided. The writ was adjourned on 13 January 2023 because the licensee's counsel had not been served, and was listed afresh for 25 January 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Theft demand — decide the consumer's objection under the Supply Code before recovery

HOLDING

On the licensee's statement that, before recovery, respondent No. 2 would decide the petitioner's objection to the theft demand by following the procedure prescribed under the Electricity Supply Code, 2005, the writ is disposed of with a direction that the objection be decided in accordance with law before any amount is recovered. ¶ 2

FLAG The order invokes the Electricity Supply Code, 2005 without identifying a numbered clause.

PRINCIPLE TAGS

objection-decided-under-supply-code-before-recovery The writ against the theft demand was disposed of on counsel's statement, with a direction that the pending objection be decided under the Supply Code procedure before recovery, and without a finding on the demand. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 26 JULY 2022 FOR RS. 1,48,088, AND THE OBJECTION DATED 10 AUGUST 2022, ARE SUSTAINABLE ON MERITS.

Left to respondent No. 2 to decide in accordance with law before recovery. ¶ 2